

26STCV07891 26STCV07891

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 26STCV07891 Hearing Date: September 17, 2026 Dept: 408

Defendant Dave Michalski's

Motion to Set Aside/Vacate Default is GRANTED.

I.

BACKGROUND

On March 12, 2026, Plaintiff Susan Agostinelli ("Agostinelli") filed a complaint against Defendant Dave Michalski ("Michalski") alleging causes of action for:

1. Breach of Implied Contract;
2. Unjust Enrichment;
3. Constructive Trust;
4. Declaratory Relief;
5. Accounting;
6. Promissory Estoppel; and
7. Equitable Lien.

On May 11, 2026, pursuant to Agostinelli's request, default was entered against Michalski.

On May 15, 2026, Michalski filed an answer to

Agostinelli's complaint and a cross-complaint against Agostinelli.

On July 27, 2026, Agostinelli filed an answer to Michalski's cross-complaint.

On July 27, 2026, Michalski filed this Motion to Set Aside/Vacate Default. On September 10, 2026, Michalski filed a Notice of Non-Opposition.

On July 29, 2026, the court ordered Michalski's cross-complaint and Agostinelli's answer to the cross-complaint stricken.

II.

LEGAL

STANDARD

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or other proceeding was taken." (Ibid.) "[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court...[Citation.]" (Rappleyea v. Campbell (1994) 8 Cal. 4th 975, 981-982.)

Code of Civil Procedure section 473(b)

provides both discretionary and mandatory relief from orders. Discretionary relief is available under the statute as "the court may, upon any terms as may be just, relieve a party or his or her legal representative from judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code of Civ. Proc. § 473, subd. (b).) Mandatory relief is available when "accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect." (Code of Civ. Proc. § 473, subd. (b).)

“The terms mistake, inadvertence, surprise, and excusable neglect warranting relief under section 473(b) are defined as follows: ‘Mistake is not a ground for relief under section 473, subdivision (b), when “the court finds that the ‘mistake’ is simply the result of professional incompetence, general ignorance of the law, or unjustifiable negligence in discovering the law....” [Citation.] Further, “[t]he term ‘surprise,’ as used in section 473, refers to “some condition or situation in which a party ... is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against.” [Citation.]” Finally, as for inadvertence or neglect, “[t]o warrant relief under section 473 a litigant’s neglect must have been such as might have been the act of a reasonably prudent person under the same circumstances. The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief.’ [Citation.]” (Henderson v. Pacific Gas & Electric Co. (2010) 187 Cal.App.4th 215, 229-230.)

III.

DISCUSSION

Michalski seeks relief pursuant to Code of Civil Procedure section 473(d) to set aside the default entered against him on May 11, 2026. (Motion, at p. 1.) Michalski’s counsel, Megan L. Whipp (“Whipp”), declares that, on May 8, 2026, Whipp electronically submitted Michalski’s answer and cross-complaint for filing and served Agostinelli the same day. (Whipp Decl., ¶¶ 3-4, Exhs. A-B.) On May 15, 2026, Whipp received notice that the filing was rejected as Whipp mistakenly submitted the answer and cross-complaint in a single document rather than separate filings. (Id., ¶ 5, Exh. C.) Upon receiving notice, Whipp corrected the filing defect, re-submitted the same substantive pleadings in proper form, and re-served Agostinelli that same day. (Id., ¶ 8, Exhs. D-E.)

The

court finds that the default entered against Michalski was due to his counsel’s mistake. The motion is also timely as it was filed within the six-month deadline. (Code Civ. Proc., § 473, subd. (b).) The court further notes that Agostinelli failed to file an opposition, effectively consenting to the court granting the motion. (Cal. Rules of Court, 8.54(c) [“A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, the motion is granted.

IV.

CONCLUSION

Defendant Dave Michalski's

Motion to Set Aside/Vacate Default is GRANTED.